CITY OF HAVERHILL
POLICE DEPARTMENT
OFFICE OF THE CHIEF, 40 BAILEY BLVD, HAVERHILL, MASSACHUSETTS 01830

ROBERT P. PISTONE, JR.
CHIEF OF POLICE

TEL. (978) 373-1212
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April 1, 2024

VIA ELECTRONIC MAIL

Samuel Sinyangwe
c/o MuckRock News
Dept MR 160596
263 Huntington Avenue
Boston, MA 02115

FOIA REQUEST NO. 2024-1720

Dear Mr. Sinyangwe:

The Haverhill Police Department is in receipt of your request dated March 20, 2024 in which you requested:

1. the total number of use of force incidents reported from 2017-2022, separated by year.

2. the total number of use of force incidents, separated by type of force and year, from 2017-2022 (for example, information that specifies the number of taser incidents in 2022, baton incidents in 2022, taser incidents in 2021, baton incidents in 2021, etc.)

3. the total number of civilian complaints against law enforcement that were reported and the total number sustained from 2017-2022, separated by year.

4. the total number of civilian complaints alleging law enforcement use of excessive force that were reported and the total number sustained from 2017-2022, separated by year.

5. the total number of civilian complaints alleging biased policing or racial profiling that were reported and the total number sustained from 2017-2022, separated by year.

6. the total number of civilian complaints alleging criminal conduct that were reported and the total number sustained from 2017-2022, separated by year.

7. the total number of officer-involved shootings from 2017-2022, both fatal and non-fatal, separated by year.

8. the total number of people who police used force against in 2022, broken down by race/ethnicity.

RESPONSE

Please be advised that the mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time of the request is received. The mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time the request is received. As a result, there is no obligation for a department to create a record for a requestor to honor a request. See, Mass. General Laws, c. 4, s. 7(26) (defining "public records" as materials which have been "made or received" by a public entity); see, also, 32 Op. Att'y Gen. 157, 165 (May 18, 1977) custodian is not obliged to create a record in response to a request for information); see, also A Guide to the Massachusetts Public Records Law, Secretary of the Commonwealth, Division of Public Records, p. 7 (January 2013) (hereinafter Public Records Guide).

1. Please see the Use-of-Force Incident reports for calendar years, 2017, 2018, 2019, 2020, 2021, and 2022 attached herewith.

2. See Response No. 1.

3. Please see the attached Citizen Complaint/Excessive Use of Force forms (seven in total) for calendar years 2017, 2018, 2019, 2020, 2021, and 2022 attached herewith.

4. See Response No. 3.

5. In response to this portion of your request, the Haverhill Police Department only had one civilian complaint alleging racial profiling/biased policing in 2022 which was deemed unfounded. To reiterate, the mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time of the request is received. The mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time the request is received. As a result, there is no obligation for a department to create a record for a requestor to honor a request. See, Mass. General Laws, c. 4, s.

7(26) (defining "public records" as materials which have been "made or received" by a public entity); see, also, 32 Op. Att'y Gen. 157, 165 (May 18, 1977) custodian is not obliged to create a record in response to a request for information); see, also A Guide to the Massachusetts Public Records Law, Secretary of the Commonwealth, Division of Public Records, p. 7 (January 2013) (hereinafter Public Records Guide).

6. In response to this portion of your request, the Haverhill Police Department did not receive any civilian complaints alleging criminal conduct from 2017 through 2022. Therefore, the Haverhill Police Department does not have any documents responsive to this portion of your request. The mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time of the request is received. The mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time the request is received. As a result, there is no obligation for a department to create a record for a requestor to honor a request. See, Mass. General Laws, c. 4, s. 7(26) (defining "public records" as materials which have been "made or received" by a public entity); see, also, 32 Op. Att'y Gen. 157, 165 (May 18, 1977) custodian is not obliged to create a record in response to a request for information); see, also A Guide to the Massachusetts Public Records Law, Secretary of the Commonwealth, Division of Public Records, p. 7 (January 2013) (hereinafter Public Records Guide).

7. In response to this portion of your request, there was only one (1) non-fatal officer-involved shooting which occurred in 2020 involving Haverhill Police Department. To reiterate, the mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time of the request is received. The mandatory disclosure provision of the Public Records Law only applies to information that is in the custody of the Department at the time the request is received. As a result, there is no obligation for a department to create a record for a requestor to honor a request. See, Mass. General Laws, c. 4, s. 7(26) (defining "public records" as materials which have been "made or received" by a public entity); see, also, 32 Op. Att'y Gen. 157, 165 (May 18, 1977) custodian is not obliged to create a record in response to a request for information); see, also A Guide to the Massachusetts Public Records Law, Secretary of the Commonwealth, Division of Public Records, p. 7 (January 2013) (hereinafter Public Records Guide).

8. Please see Gender Race document attached herewith for calendar year 2022.

Be advised that you have a right to appeal this decision to the Secretary of State's Office listed below:

Secretary of the Commonwealth
Public Records Division
McCormack Building
One Ashburton Place – Room 1719
Boston, MA 02108

By law, the Supervisor is required to respond within ten (10) business days of the receipt of your appeal pursuant to 950 CMR 32.08(1)(d). The appeal must include your original request along with this response. You may also seek judicial review of an unfavorable response by commencing a civil action in the superior court pursuant to G.L. c. 66, §10A(c).

Very truly yours,

Aniela Ricci
Records Clerk

Encs.

Use-of-force Incidents received between Jan 01, 2017 and Dec 31, 2017

Total number of use-of-force incidents (including those in BlueTeam and not yet released into IAPro): 93

Number of use-of-force incidents in BlueTeam and not yet released: 0

Total number of officers involved: 188

Type of force tally:

	Effective		Not Effective		
	#	%	#	%	Total
arm bar take down	14	100%	0	0%	14
Expandable Baton	3	100%	0	0%	3
Firearm	20	100%	0	0%	20
Hands	145	99%	2	1%	147
OC	2	50%	2	50%	4
Other	3	100%	0	0%	3

Citizen resistance tally:

	Count	Percent of total
Active Resistance	17	18%
Assaultive	9	9%
Firearm	2	2%
Knife	2	2%
Passive Resistance	1	1%
UOF-Resistance	61	64%
Vehicle	3	3%
Total	**95**	

Citizen injury tally:

	Count	Percent of total
abrasions	6	19%
Bruise	2	6%

Complaint of Pain	2	6%
Cut/Abrasion	3	9%
EMS - Treated at Scene	1	3%
laceration	2	6%
No injuries noted or visible	7	22%
scratch	3	9%
small cut	1	3%
UOF-Citizen Injury	5	16%
Total	**32**	

Citizen arrested in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	30	32%
Yes	63	68%
Total	**93**	

Tally of charges against involved citizens:

	Count	Percent of total
A&B	10	5%
A&B Domestic	4	2%
A&B on a Police Officer	16	8%
A&B on Ambulance Personnel	1	1%
A&B on Family/Household Member	3	2%
A+B ON + 60 DISABLE	1	1%
ABDW	10	5%
Assault	3	2%
Assault on Ambulance Personnel	2	1%
Assault to Murder, Armed	1	1%
Assault w/dangerous weapon	4	2%
B&E Larceny from MV	2	1%
B&E Nightime for Felony	3	2%
Conspiracy to violate drug law	1	1%
Defacing Property	2	1%
Destruction of Property	2	1%

Disguise to obstruct justice	4	2%
Disorderly Conduct	24	13%
disorderly conduct on public conveyance	1	1%
Distribute Class B Drug	1	1%
Disturbing the Peace	2	1%
Domestic Disturbance	1	1%
Failure to Stop for Police	2	1%
Larceny of Motor Vehicle	2	1%
Larceny Over	1	1%
Leaving Scene of Property damage	2	1%
Malicious Damage to MV	1	1%
Malicious Destruction of Property	7	4%
Negligent Operation of MV	2	1%
Number Plate Violation	1	1%
Open and Gross Lewdness	1	1%
Operating MV with License Revoked	1	1%
OUI Drugs	1	1%
OUI Liquor	1	1%
poss. Class B with Intent	1	1%
Possess Burglarious Instruments	3	2%
Possession class A drug	1	1%
Possession Class B Drug	3	2%
Possession Class E Drug	1	1%
Receiving Stolen MV	2	1%
Receiving Stolen Property	2	1%
Reckless Endangerment to Children	1	1%
Resisting Arrest	36	19%
School disturbance	1	1%
Speeding	1	1%
Strangulation or Suffocation	2	1%
Threat to Commit Crime	3	2%
Trespass	4	2%
Uninsured M/V Trailer	2	1%
Unlicensed Operation of MV	4	2%
Unregistered MV	2	1%
Violate Abuse Prevention Order	1	1%
Witness Intimidation	2	1%

Total	**192**

Citizen was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	68	73%
Yes	25	27%
Total	**93**	

Citizen taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	47	51%
Yes	46	49%
Total	**93**	

Officer injury tally:

	Count	Percent of total
Bruise	2	8%
bruised shoulder	1	4%
minor scratches	1	4%
No injuries noted or visible	18	69%
UOF-Officer Injury	4	15%
Total	**26**	

Officer was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	80	86%
Yes	13	14%
Total	**93**	

Officer taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	84	90%
Yes	9	10%
Total	**93**	

Reason for use-of-force:

	Count	Percent of total
[No Entry]	2	2%
Arrest	47	51%
Defend	4	4%
Defend Others	2	2%
Defend Self	3	3%
Defense	8	9%
Restraint	27	29%
Total	**93**	

Type of service being rendered at time of use-of-force:

	Count	Percent of total
[No Entry]	2	2%
Arrest	6	6%
Booking	3	3%
Investigation	3	3%
Responding to call	67	72%
Station Duty	1	1%
Transport Prisoner	2	2%
Vehicle Stop	5	5%
Warrant Arrest	4	4%
Total	**93**	

Average age of involved citizens: 27

Report date range criteria: Received between Jan 01, 2017 and Dec 31, 2017

Report name: Use of Force stats

Report run on: Mar 28, 2024 at 15:05 by Captain Andrea Fogarty

Use-of-force Incidents received between Jan 01, 2018 and Dec 31, 2018

Total number of use-of-force incidents (including those in BlueTeam and not yet released into IAPro): 81

Number of use-of-force incidents in BlueTeam and not yet released: 0

Total number of officers involved: 171

Type of force tally:

	Effective		Not Effective		
	#	%	#	%	Total
arm bar take down	22	96%	1	4%	23
Expandable Baton	5	100%	0	0%	5
Hands	97	88%	13	12%	110
Knee Strikes	3	50%	3	50%	6
OC	8	89%	1	11%	9
Other	20	83%	4	17%	24

Citizen resistance tally:

	Count	Percent of total
Active Resistance	67	64%
Assaultive	27	26%
Cooperative	1	1%
Knife	2	2%
Life-Threatening	1	1%
Passive Resistance	6	6%
Total	**104**	

Citizen injury tally:

	Count	Percent of total
Bruise	9	10%
Complaint of Pain	10	11%
Cut/Abrasion	19	21%

EMS - Refused Treatment	2	2%
EMS - Transported	3	3%
No injuries noted or visible	44	49%
Pre-Existing Injury	2	2%
Total	**89**	

Citizen arrested in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	23	28%
Yes	58	72%
Total	**81**	

Tally of charges against involved citizens:

	Count	Percent of total
A&B	5	3%
A&B Domestic	8	4%
A&B on a Police Officer	18	10%
A&B on Ambulance Personnel	1	1%
ABDW	4	2%
Alcohol from open container in MV	1	1%
Assault	2	1%
Assault w/dangerous weapon	7	4%
B&E for Felony	1	1%
B&E Nightime for Felony	1	1%
Conspiracy to violate drug law	1	1%
Defacing Property	2	1%
Destruction of Property	6	3%
Disguise to obstruct justice	5	3%
Disorderly Conduct	31	16%
Distribute Class A Drug	2	1%
Disturbing the Peace	2	1%
Domestic Charge	1	1%
Fail to Stop/Yield	2	1%
Failure to Stop for Police	1	1%

Firearm, Carry Without License	1	1%
Improper Operation of MV	1	1%
Intimidate Witness	1	1%
Larceny of Motor Vehicle	2	1%
Leaving Scene of Property damage	2	1%
Malicious Destruction of Property	2	1%
Marked Lanes Violation	1	1%
Miscellaneous Statutory	2	1%
Narcotic Charge	2	1%
Negligent Operation of MV	1	1%
Operating MV with License Revoked	1	1%
OUI Liquor	2	1%
poss. Class B with Intent	1	1%
Poss. to distribute Class A	1	1%
Possession class A drug	2	1%
Possession Class B Drug	4	2%
Possession Class E Drug	1	1%
Reckless Oper. of MV	2	1%
Resisting Arrest	42	22%
Shoplifting	2	1%
Threat to Commit Crime	1	1%
Trespass	1	1%
Unarmed Robbery	1	1%
Uninsured M/V Trailer	1	1%
Unlicensed Operation of MV	2	1%
Unregistered MV	1	1%
Warrant Arrest	5	3%
Weapons Charge	1	1%
Witness Intimidation	1	1%
Total	**188**	

Citizen was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	52	64%
Yes	29	36%
Total	**81**	

Citizen taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	54	67%
Yes	27	33%
Total	**81**	

Officer injury tally:

	Count	Percent of total
Bruise	3	2%
Complaint of Pain	10	7%
Cut/Abrasion	6	4%
EMS - Treated at Scene	1	1%
No injuries noted or visible	131	87%
Total	**151**	

Officer was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	67	83%
Yes	14	17%
Total	**81**	

Officer taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	72	89%
Yes	9	11%
Total	**81**	

Reason for use-of-force:

	Count	Percent of total
Arrest	46	57%

Defend Others	1	1%
Defend Self	6	7%
Restraint	28	35%
Total	**81**	

Type of service being rendered at time of use-of-force:

	Count	Percent of total
Arrest	3	4%
Booking	5	6%
Investigation	13	16%
Responding to call	40	49%
Station Duty	1	1%
Transport Prisoner	4	5%
Vehicle Stop	2	2%
Warrant Arrest	13	16%
Total	**81**	

Average age of involved citizens: 30

Report date range criteria: Received between Jan 01, 2018 and Dec 31, 2018

Report name: Use of Force stats

Report run on: Mar 28, 2024 at 15:05 by Captain Andrea Fogarty

Use-of-force Incidents received between Jan 01, 2019 and Dec 31, 2019

Total number of use-of-force incidents (including those in BlueTeam and not yet released into IAPro): 84

Number of use-of-force incidents in BlueTeam and not yet released: 0

Total number of officers involved: 236

Type of force tally:

	Effective		Not Effective		
	#	%	#	%	Total
arm bar take down	29	97%	1	3%	30
ECW (Taser)	1	50%	1	50%	2
Expandable Baton	2	67%	1	33%	3
Hands	150	96%	7	4%	157
Knee Strikes	7	88%	1	13%	8
OC	4	100%	0	0%	4
Other	18	95%	1	5%	19

Citizen resistance tally:

	Count	Percent of total
Active Resistance	61	55%
Assaultive	30	27%
Blunt Object	1	1%
Cooperative	6	5%
Firearm	3	3%
Passive Resistance	10	9%
Total	**111**	

Citizen injury tally:

	Count	Percent of total
Bruise	3	3%
Complaint of Pain	4	4%

Cut/Abrasion	22	24%
EMS - Refused Treatment	1	1%
No injuries noted or visible	57	62%
Pre-Existing Injury	5	5%
Total	**92**	

Citizen arrested in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	35	42%
Yes	49	58%
Total	**84**	

Tally of charges against involved citizens:

	Count	Percent of total
A&B	8	4%
A&B Domestic	10	5%
A&B on a Police Officer	20	10%
A&B on Ambulance Personnel	2	1%
A&B on Public Employee	1	1%
ABDW	10	5%
Assault w/dangerous weapon	5	3%
B&E for Felony	1	1%
B&E Larceny from MV	1	1%
Carry Firearm without License	3	2%
Conspiracy to violate drug law	1	1%
Defacing Property	9	5%
Destruction of Property	2	1%
Disorderly Conduct	34	17%
Distribute Class A Drug	1	1%
Distribute Class B Drug	1	1%
Disturbing the Peace	5	3%
Fail to Stop/Yield	2	1%
Failure to Stop for Police	1	1%
Firearm Discharge within 500 ft. bldg.	3	2%

Firearm, Possession without FID card	3	2%
Intimidate Witness	2	1%
Larceny Over	1	1%
Larceny Under	1	1%
Malicious Damage to MV	2	1%
Malicious Destruction of Property	4	2%
Marked Lanes Violation	1	1%
Narcotic Charge	1	1%
Negligent Operation of MV	2	1%
Operating MV with License Revoked	1	1%
OUI Liquor	1	1%
Possession class A drug	1	1%
Possession Class B Drug	2	1%
Possession Class E Drug	3	2%
Protective Custody	1	1%
Receiving Stolen MV	1	1%
Reckless Endangerment to Children	1	1%
Reckless Oper. of MV	1	1%
Resisting Arrest	36	18%
Speeding	1	1%
Threat to Commit Crime	4	2%
Trespass	2	1%
Violate Abuse Prevention Order	1	1%
Warrant Arrest	3	2%
Total	**196**	

Citizen was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	62	74%
Yes	22	26%
Total	**84**	

Citizen taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total

No	46	55%
Yes	38	45%
Total	**84**	

Officer injury tally:

	Count	Percent of total
Bruise	4	2%
Complaint of Pain	5	2%
Cut/Abrasion	6	3%
EMS - Refused Treatment	1	0%
No injuries noted or visible	208	93%
Total	**224**	

Officer was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	76	90%
Yes	8	10%
Total	**84**	

Officer taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	80	95%
Yes	4	5%
Total	**84**	

Reason for use-of-force:

	Count	Percent of total
Arrest	41	49%
Defend Others	4	5%
Defend Self	6	7%
Restraint	33	39%

Total	**84**

Type of service being rendered at time of use-of-force:

	Count	Percent of total
Booking	4	5%
Investigation	15	18%
Responding to call	44	52%
Transport Prisoner	5	6%
Vehicle Stop	6	7%
Warrant Arrest	10	12%
Total	**84**	

Average age of involved citizens: 31

Report date range criteria: Received between Jan 01, 2019 and Dec 31, 2019

Report name: Use of Force stats

Report run on: Mar 28, 2024 at 15:04 by Captain Andrea Fogarty

Use-of-force Incidents received between Jan 01, 2020 and Dec 31, 2020

Total number of use-of-force incidents (including those in BlueTeam and not yet released into IAPro): 79

Number of use-of-force incidents in BlueTeam and not yet released: 0

Total number of officers involved: 205

Type of force tally:

	Effective		Not Effective		
	#	%	#	%	Total
arm bar take down	21	100%	0	0%	21
ECW (Taser)	3	60%	2	40%	5
Firearm	3	100%	0	0%	3
Hands	148	97%	4	3%	152
Knee Strikes	3	50%	3	50%	6
OC	3	75%	1	25%	4
Other	23	100%	0	0%	23

Citizen resistance tally:

	Count	Percent of total
Active Resistance	70	62%
Assaultive	27	24%
Blunt Object	1	1%
Cooperative	1	1%
Knife	2	2%
Life-Threatening	5	4%
Passive Resistance	7	6%
Total	**113**	

Citizen injury tally:

	Count	Percent of total
Bone Fracture	1	1%

Bruise	4	4%
Complaint of Pain	8	9%
Cut/Abrasion	21	22%
EMS - Transported	4	4%
Loss Teeth	1	1%
No injuries noted or visible	55	59%
Total	**94**	

Citizen arrested in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	23	29%
Yes	56	71%
Total	**79**	

Tally of charges against involved citizens:

	Count	Percent of total
A&B	8	4%
A&B Domestic	10	4%
A&B on a Police Officer	26	12%
A&B on Ambulance Personnel	2	1%
ABDW	6	3%
Ammunition, Unlicensed Possession	3	1%
Assault	2	1%
Assault to Murder, Armed	1	0%
Assault w/dangerous weapon	6	3%
Attempt to Commit Crime	1	0%
B&E for Felony	2	1%
Carry Dangerous Weapon	3	1%
Carry Firearm without License	1	0%
Conspiracy to violate drug law	6	3%
Defacing Property	4	2%
Destruction of Property	5	2%
Disorderly Conduct	29	13%
Distribute Class A Drug	1	0%

Distribute Cocaine	1	0%
Disturbing the Peace	2	1%
Fail to Stop/Yield	2	1%
Failure to Stop for Police	4	2%
Firearm, Carry Without License	2	1%
Firearm, Possession without FID card	1	0%
Interfere with Police Officer	3	1%
Larceny Under	1	0%
Leaving Scene of Property damage	3	1%
Malicious Damage to MV	1	0%
Malicious Destruction of Property	2	1%
Marked Lanes Violation	3	1%
MV lights violation	1	0%
Negligent Operation of MV	6	3%
Number Plate Violation	1	0%
Oper. MV with License Suspended	1	0%
Operating MV with License Revoked	1	0%
OUI Drugs	1	0%
OUI Liquor	1	0%
poss. Class B with Intent	3	1%
Poss. to distribute Class A	3	1%
Possession class A drug	1	0%
Possession Class B Drug	2	1%
Possession Class E Drug	1	0%
Possession to distribute Class D	2	1%
Receiving Stolen MV	1	0%
Reckless Endangerment to Children	2	1%
Resisting Arrest	40	18%
Speeding	3	1%
Threat to Commit Crime	1	0%
Trafficking in Cocaine	1	0%
Trespass	1	0%
Unarmed Robbery	1	0%
Unlicensed Operation of MV	5	2%
Unregistered MV	1	0%
Warrant Arrest	3	1%
Witness Intimidation	1	0%

Total	**225**

Citizen was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	51	65%
Yes	28	35%
Total	**79**	

Citizen taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	51	65%
Yes	28	35%
Total	**79**	

Officer injury tally:

	Count	Percent of total
Bruise	3	2%
Complaint of Pain	6	3%
Cut/Abrasion	9	5%
EMS - Treated at Scene	1	1%
No injuries noted or visible	170	90%
Total	**189**	

Officer was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	66	84%
Yes	13	16%
Total	**79**	

Officer taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	70	89%
Yes	9	11%
Total	**79**	

Reason for use-of-force:

	Count	Percent of total
Arrest	46	58%
Defend Others	3	4%
Defend Self	6	8%
Restraint	24	30%
Total	**79**	

Type of service being rendered at time of use-of-force:

	Count	Percent of total
Booking	3	4%
Investigation	11	14%
Responding to call	47	59%
Station Duty	1	1%
Transport Prisoner	2	3%
Vehicle Stop	7	9%
Warrant Arrest	8	10%
Total	**79**	

Average age of involved citizens: 30

Report date range criteria: Received between Jan 01, 2020 and Dec 31, 2020

Report name: Use of Force stats

Report run on: Mar 28, 2024 at 15:04 by Captain Andrea Fogarty

Use-of-force Incidents received between Jan 01, 2021 and Dec 31, 2021

Total number of use-of-force incidents (including those in BlueTeam and not yet released into IAPro): 53

Number of use-of-force incidents in BlueTeam and not yet released: 0

Total number of officers involved: 138

Type of force tally:

	Effective		Not Effective		
	#	%	#	%	Total
arm bar take down	25	96%	1	4%	26
ECW (Taser) - Displayed	1	100%	0	0%	1
Expandable Baton	1	100%	0	0%	1
Firearm	0	0%	1	100%	1
Firearm - Displayed	2	100%	0	0%	2
Hands	103	100%	0	0%	103
Knee Strikes	4	100%	0	0%	4
Other	7	88%	1	13%	8

Citizen resistance tally:

	Count	Percent of total
Active Resistance	41	61%
Assaultive	18	27%
Life-Threatening	2	3%
Passive Resistance	6	9%
Total	**67**	

Citizen injury tally:

	Count	Percent of total
Bruise	3	5%

Complaint of Pain	2	3%
Cut/Abrasion	15	25%
EMS - Refused Treatment	1	2%
EMS - Transported	1	2%
No injuries noted or visible	37	62%
Pre-Existing Injury	1	2%
Total	**60**	

Citizen arrested in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	12	23%
Yes	41	77%
Total	**53**	

Tally of charges against involved citizens:

	Count	Percent of total
A&B	4	2%
A&B Domestic	10	6%
A&B on a Police Officer	22	13%
A&B on Ambulance Personnel	1	1%
ABDW	3	2%
Assault w/dangerous weapon	3	2%
B&E for Felony	2	1%
Carry Dangerous Weapon	4	2%
Conspiracy to violate drug law	2	1%
Defacing Property	3	2%
Disorderly Conduct	24	14%
Distribute Class B Drug	1	1%
Distribute Cocaine	1	1%
Disturbing the Peace	4	2%
Domestic Disturbance	1	1%
Fail to Stop/Yield	1	1%
Failure to Stop for Police	4	2%
Fugutive from Justice Warrant	1	1%

Improper Operation of MV	1	1%
Interfere with Police Officer	1	1%
Leaving Scene of Personal Injury	1	1%
Malicious Destruction of Property	2	1%
MV operator refused to identify self	1	1%
Narcotic Charge	1	1%
Negligent Operation of MV	5	3%
Number Plate Violation	2	1%
Open and Gross Lewdness	1	1%
Oper. MV with License Suspended	1	1%
Operating MV with License Revoked	1	1%
OUI Drugs	1	1%
OUI Liquor	3	2%
Possession class A drug	2	1%
Possession Class B Drug	2	1%
Possession Class E Drug	1	1%
Reckless Oper. of MV	1	1%
Refuse to Identify self	1	1%
Resisting Arrest	33	20%
Shoplifting	1	1%
Speeding	2	1%
Threat to Commit Crime	3	2%
Trespass	1	1%
Unarmed Robbery	1	1%
Unlicensed Operation of MV	2	1%
Vio 209A	1	1%
Warrant Arrest	2	1%
Witness Intimidation	2	1%
Total	**167**	

Citizen was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	34	64%
Yes	19	36%
Total	**53**	

Citizen taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	40	75%
Yes	13	25%
Total	**53**	

Officer injury tally:

	Count	Percent of total
Bruise	2	2%
Complaint of Pain	4	3%
Cut/Abrasion	5	4%
EMS - Transported	3	2%
No injuries noted or visible	108	89%
Total	**122**	

Officer was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	44	83%
Yes	9	17%
Total	**53**	

Officer taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	47	89%
Yes	6	11%
Total	**53**	

Reason for use-of-force:

	Count	Percent of total
Arrest	32	60%

Defend Others	1	2%
Defend Self	4	8%
Restraint	16	30%
Total	**53**	

Type of service being rendered at time of use-of-force:

	Count	Percent of total
Booking	3	6%
Investigation	9	17%
Responding to call	24	45%
Transport Prisoner	3	6%
Vehicle Stop	3	6%
Warrant Arrest	11	21%
Total	**53**	

Average age of involved citizens: 29

Report date range criteria: Received between Jan 01, 2021 and Dec 31, 2021

Report name: Use of Force stats

Report run on: Mar 28, 2024 at 15:00 by Captain Andrea Fogarty

Use-of-force Incidents received between Jan 01, 2022 and Dec 31, 2022

Total number of use-of-force incidents (including those in BlueTeam and not yet released into IAPro): 74

Number of use-of-force incidents in BlueTeam and not yet released: 0

Total number of officers involved: 193

Type of force tally:

	Effective		Not Effective		
	#	%	#	%	Total
arm bar take down	23	100%	0	0%	23
ECW (Taser)	1	100%	0	0%	1
ECW (Taser) - Displayed	0	0%	1	100%	1
Expandable Baton	2	100%	0	0%	2
Firearm - Displayed	0	0%	2	100%	2
Hands	173	99%	2	1%	175
Knee Strikes	4	100%	0	0%	4
OC	2	100%	0	0%	2
Other	10	91%	1	9%	11

Citizen resistance tally:

	Count	Percent of total
Active Resistance	58	55%
Assaultive	34	32%
Blunt Object	1	1%
Cooperative	4	4%
Knife	1	1%
Life-Threatening	1	1%
Passive Resistance	6	6%
Total	**105**	

Citizen injury tally:

	Count	Percent of total
Bone Fracture	1	1%
Bruise	5	6%
Complaint of Pain	1	1%
Cut/Abrasion	19	22%
EMS - Refused Treatment	1	1%
EMS - Transported	2	2%
No injuries noted or visible	53	62%
Pre-Existing Injury	3	4%
Total	**85**	

Citizen arrested in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	25	34%
Yes	49	66%
Total	**74**	

Tally of charges against involved citizens:

	Count	Percent of total
A&B	10	5%
A&B Domestic	12	6%
A&B on a Police Officer	24	13%
A&B on Ambulance Personnel	2	1%
ABDW	6	3%
Affray	1	1%
Alcohol Charge	1	1%
Assault	3	2%
Assault w/dangerous weapon	3	2%
B&E for Felony	5	3%
B&E Larceny from MV	1	1%
Carry Dangerous Weapon	1	1%
Defacing Property	4	2%
Destruction of Property	3	2%

Disguise to obstruct justice	1	1%
Disorderly Conduct	19	10%
Disturbing the Peace	7	4%
Domestic Charge	1	1%
Fail to Stop/Yield	1	1%
Failure to Stop for Police	1	1%
Firearm, Carry Without License	1	1%
Kidnapping	1	1%
Larceny of Motor Vehicle	1	1%
Larceny Over	1	1%
Larceny Under	1	1%
Leaving Scene of Personal Injury	1	1%
Malicious Damage to MV	2	1%
Malicious Destruction of Property	1	1%
Municipal by-law or ordinance violation	1	1%
Negligent Operation of MV	2	1%
Oper. MV with License Suspended	2	1%
OUI Liquor, 2nd offense	1	1%
OUI Liquor, 3rd offense	1	1%
Possession class A drug	1	1%
Possession Class B Drug	4	2%
Possession Class E Drug	2	1%
Refuse to Identify self	1	1%
Resisting Arrest	39	21%
Threat to Commit Crime	10	5%
Traffic Charge	1	1%
Trespass	4	2%
Warrant Arrest	3	2%
Total	**187**	

Citizen was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	48	65%
Yes	26	35%
Total	**74**	

Citizen taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	61	82%
Yes	13	18%
Total	**74**	

Officer injury tally:

	Count	Percent of total
Bruise	3	2%
Cut/Abrasion	14	7%
No injuries noted or visible	178	91%
Total	**195**	

Officer was injured in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	61	82%
Yes	13	18%
Total	**74**	

Officer taken to hospital in conjunction with use-of-force (# incidents):

	Count	Percent of total
No	71	96%
Yes	3	4%
Total	**74**	

Reason for use-of-force:

	Count	Percent of total
Arrest	41	55%
Defend Others	2	3%
Defend Self	6	8%

Restraint	25	34%
Total	**74**	

Type of service being rendered at time of use-of-force:

	Count	Percent of total
Booking	3	4%
Investigation	6	8%
Off Duty	1	1%
Responding to call	49	66%
Station Duty	1	1%
Transport Prisoner	1	1%
Vehicle Stop	1	1%
Warrant Arrest	12	16%
Total	**74**	

Average age of involved citizens: 30

Report date range criteria: Received between Jan 01, 2022 and Dec 31, 2022

Report name: Use of Force stats

Report run on: Mar 28, 2024 at 15:03 by Captain Andrea Fogarty

Inc: Incident type	Inc: Created date	Inc: Disposition
Citizen complaint	05/03/2017	Unfounded
Citizen complaint	11/28/2017	Exonerated
Citizen complaint	11/08/2017	Unfounded
Citizen complaint	12/11/2017	Unfounded

Alg: Allegation	Inc: Incident type	Inc: Received date	Alg: Finding
Excessive Use of Force	Citizen complaint	05/17/2018	Exonerated
Excessive Use of Force	Citizen complaint	09/09/2020	Unfounded
Excessive Use of Force	Citizen complaint	10/22/2018	Exonerated
Excessive Use of Force	Citizen complaint	09/22/2018	Unfounded
Excessive Use of Force	Citizen complaint	10/15/2022	Unfounded

Inc: Incident type	Inc: Created date	Inc: Disposition
Citizen complaint	06/15/2018	Unfounded
Citizen complaint	12/13/2018	Unfounded
Citizen complaint	12/10/2018	Exonerated
Citizen complaint	12/10/2018	Exonerated
Citizen complaint	08/08/2018	Sustained

Inc: Incident type	Inc: Created date	Inc: Disposition
Citizen complaint	07/08/2019	Exonerated
Citizen complaint	12/05/2019	Sustained
Citizen complaint	01/24/2019	Sustained
Citizen complaint	03/22/2019	Unfounded
Citizen complaint	02/05/2019	Unfounded
Citizen complaint	03/20/2019	Unfounded
Citizen complaint	02/14/2019	Exonerated
Citizen complaint	04/01/2019	Unfounded
Citizen complaint	04/08/2019	Sustained
Citizen complaint	05/01/2019	Exonerated
Citizen complaint	12/13/2019	Not Sustained
Citizen complaint	12/17/2019	Sustained

Inc: Incident type	Inc: Created date	Inc: Disposition
Citizen complaint	01/27/2020	Not Sustained
Citizen complaint	04/28/2020	Unfounded
Citizen complaint	08/04/2020	Unfounded
Citizen complaint	08/12/2020	Within Policy
Citizen complaint	09/10/2020	Unfounded
Citizen complaint	07/28/2020	Sustained
Citizen complaint	07/28/2020	Exonerated

Inc: Incident type	Inc: Created date	Inc: Disposition
Citizen complaint	07/15/2021	Sustained
Citizen complaint	07/22/2021	Sustained
Citizen complaint	07/17/2021	Sustained
Citizen complaint	07/16/2021	Not Sustained
Citizen complaint	07/14/2021	Exonerated
Citizen complaint	07/19/2021	Exonerated
Citizen complaint	08/02/2021	Not Sustained
Citizen complaint	07/28/2021	Exonerated
Citizen complaint	08/03/2021	Unfounded
Citizen complaint	09/09/2021	Unfounded
Citizen complaint	09/30/2021	Sustained
Citizen complaint	09/08/2021	Unfounded
Citizen complaint	09/29/2021	Policy Failure
Citizen complaint	10/01/2021	Unfounded
Citizen complaint	11/05/2021	Sustained

Inc: Incident type	Inc: Created date	Inc: Disposition
Citizen complaint	01/10/2022	Unfounded
Citizen complaint	10/19/2022	Unfounded
Citizen complaint	10/25/2022	Unfounded
Citizen complaint	11/14/2022	Not Sustained
Citizen complaint	03/15/2022	Not Sustained
Citizen complaint	03/16/2022	Unfounded
Citizen complaint	04/11/2022	Within Policy
Citizen complaint	04/01/2022	Not Sustained
Citizen complaint	07/06/2022	Sustained

Count of Cit: Gender	Cit: Race					
Cit: Gender	White	Hispanic	Black		Asian	Grand Total
Male	37	17	4		1	59
Female	12	7	4			23
				1		1
Grand Total	**49**	**24**	**8**	**1**	**1**	**83**